2006, there were still fifty-three countries where a husband could not be prosecuted for the rape of his wife. Even in Germany, rape laws were amended only in 1997 to create a legal category of marital rape.[5]

Is the division into men and women a product of the imagination, like the caste system in India and the racial system in America, or is it a natural division with deep biological roots? And if it is indeed a natural division, are there also biological explanations for the preference given to men over women?

Some of the cultural, legal and political disparities between men and women reflect the obvious biological differences between the sexes. Childbearing has always been women's job, because men don't have wombs. Yet around this hard universal kernel, every society accumulated layer upon layer of cultural ideas and norms that have little to do with biology. Societies associate a host of attributes with masculinity and femininity that, for the most part, lack a firm biological basis.

For instance, in democratic Athens of the fifth century BC, an individual possessing a womb had no independent legal status and was forbidden to participate in popular assemblies or to be a judge. With few exceptions, such an individual could not benefit from a good education, nor engage in business or in philosophical discourse. None of Athens' political leaders, none of its great philosophers, orators, artists or merchants had a womb. Does having a womb make a person unfit, biologically, for these professions? The ancient Athenians thought so. Modern Athenians disagree. In present-day Athens, women vote, are elected to public office, make speeches, design everything from jewellery to buildings to software, and go to university. Their wombs do not keep them from doing any of these things as successfully as men do. True, they are still under-represented in politics and business – only about 12 per cent of the members of Greece's parliament are women. But there is no legal barrier to their participation in politics, and most modern Greeks think it is quite normal for a woman to serve in public office.

Many modern Greeks also think that an integral part of being a man is being sexually attracted to women only, and having sexual relations exclusively with the opposite sex. They don't see this as a cultural bias, but rather as a biological reality – relations between two people of the opposite sex are natural, and between two people of the same sex unnatural. In fact,